admin@tuwa.io

Transfer Assessment: Ukraine

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This document is the general part of the information that FOP Tkach Oleksandr ("TUWA," "we") provides under Clause 14 of the standard contractual clauses (Commission Implementing Decision (EU) 2021/914) to a customer of Quasar Cloud that concludes them with us ("Customer"). It describes the transfer of Customer Personal Data to us, the laws and practices of Ukraine that may apply to it, and the measures we take. The Customer uses it, with its own information, to assess whether the clauses can be complied with. Terms are used as defined in our Data Processing Addendum ("DPA").

1. The transfer

Aspect	Details
Data	Customer Personal Data described in Annex D of the DPA: public wallet addresses, transaction hashes and the technical fields of transactions, the free fields that the Customer's apps add (titles, descriptions, payloads), webhook payloads and delivery logs. No special categories of data are needed or intended.
Sensitivity	Wallet addresses and transaction hashes are pseudonymous and are public on the blockchains where the transactions take place. The free fields are written by the Customer's apps and may contain other personal data; the DPA forbids special categories in them. The assessment of each flow (Sections 5 and 6) takes into account what the Customer's apps actually send.
Frequency	Continuous, whenever the Customer's apps sync transactions.
Where the data is stored	On our servers in the Netherlands (HostHatch, Amsterdam). Encrypted backups are stored with Cloudflare R2.

Aspect	Details
Who in Ukraine has access, and how	We operate Quasar Cloud from Ukraine. The operator of TUWA (one person) has remote administrative access to the servers and to the Quasar admin panel, over encrypted connections. No data is stored in Ukraine as a matter of course; data is viewed there only to operate the service or to answer the Customer, and it is not exported from the servers except in encrypted backups (Cloudflare R2).
Onward transfers	To the sub-processors in Annex C of the DPA, under the safeguards listed there. Providers that the Customer sets up for its apps receive data on the Customer's instruction (DPA, Section 7).

2. Laws of Ukraine that may apply

This section describes the legal framework. The facts it confirms do not by themselves show that the protection of a particular flow is effective; the assessment of each flow (Sections 5 and 6) applies them to that flow.

Data protection. The Law of Ukraine "On Personal Data Protection" (No. 2297-VI of 1 June 2010) governs the processing of personal data in Ukraine, and the Ukrainian Parliament Commissioner for Human Rights supervises compliance with it. Ukraine has ratified the Council of Europe Convention 108 and its Additional Protocol (Law No. 2438-VI of 6 July 2010). Ukraine is not covered by an adequacy decision of the European Commission.

Access by public authorities. Ukrainian authorities can request or obtain data held by a person in Ukraine through several procedures. Their conditions, and the control over them, differ:

- Criminal proceedings under the Criminal Procedure Code of Ukraine (2012). It has distinct procedures with different conditions: temporary access to things and documents, including electronic data (Articles 159–166); searches (Articles 233–236); and covert investigative actions, including obtaining information from electronic information systems (Articles 258–264). These actions are, as a rule, taken on a ruling of an investigating judge. For entering a home or other property there is a limited urgent exception, after which the prosecution must apply for a ruling of the investigating judge (Article 233(3), as amended by Law No. 720-IX). Section IX-1 (in particular Article 615, as amended by Law No. 2201-IX) sets special procedures for martial law where an investigating judge cannot act; they change the procedure in those cases and do not abolish judicial control in general.
- Operational and search activities (Law "On Operational and Search Activities", No. 2135-XII), for which that Law requires a court decision for the measures that interfere with the privacy of communications and data that it lists (Article 8), and the powers of the Security Service of Ukraine (Law "On the Security Service of Ukraine", No. 2229-XII), which are exercised within that Law and the rules of criminal procedure, not as a separate exception from them.
- Martial law, in force since 24 February 2022 (Presidential Decree No. 64/2022) and in force on the date of this document (Decree No. 596/2026). The decree allows the temporary restriction of the rights under Articles 30–34, 38, 39, 41–44 and 53 of the Constitution of Ukraine, within the measures of the legal regime of martial law (Article 64 of the Constitution and the Law "On the Legal Regime of Martial Law"). This list names the rights that may be restricted; it does not by itself set a procedure for access to data.

This is an overview of the procedures, not a statement of every power, urgent ground and exception in the current wording of these laws.

Electronic communications. The Law "On Electronic Communications" (No. 1089-IX) places obligations, including obligations towards authorities, on providers of electronic communications networks and services. Quasar Cloud processes information about blockchain transactions for the Customer's apps and sends the results to the Customer's webhook endpoints over internet connections that others provide. On these functions it does not appear to be an internet access service or an interpersonal communications service only because it uses a network. This is a

preliminary view based on the functions described in Section 1, not a final qualification of every current and future function; we review it when the functions change (Section 7).

Remedies. Persons affected can challenge the actions of authorities in court and complain to the Ukrainian Parliament Commissioner for Human Rights; Ukraine is a party to the European Convention on Human Rights, so an application to the European Court of Human Rights is possible after domestic remedies. Their effectiveness in a particular case cannot be assumed, in particular where access is covert and the person concerned is not told of it.

3. Our practice

- The operator of TUWA confirms that, as of the date of this document, we have not received any request from a public authority of Ukraine or of any other country for Customer Personal Data. This is a statement of our practice, not a legal conclusion.
- We will publish a change to this section if that changes, as far as the law allows.
- Our experience is limited (Quasar Cloud is a free public beta and has no customers yet) and does not by itself show what authorities may do.

4. Our commitments and measures

- **If we receive a request** for Customer Personal Data from a public authority, we act as Clause 15 of the clauses requires: we notify the Customer, unless the law forbids it, and then seek a waiver of the prohibition; we review the legality of the request and challenge it where there are reasonable grounds; we disclose only the minimum needed; and we document the request, our assessment and our answer.

- **Location and access.** The data is stored in the Netherlands. Access is limited to the operator of TUWA, whose accounts use two-factor authentication; every record is scoped to its organization. The operator reads Customer Personal Data in the admin panel, which records each view (who, which records, when) for 1 year; a view that cannot be recorded is refused. There is no web tool for the database: it is reached only over SSH with the keys of the operator, for deployments and migrations, backups and restores, incidents and work the admin panel cannot do. Requests to the admin panel pass through our reverse proxy, which logs each request (time, path and status, not the data) for 7 days. Every hour an automated check copies these views, the SSH sign-ins of the servers and the requests to the admin panel into the review of the week and alerts us at once to a sign-in or a view it does not expect; every week we review them and record the reason of each SSH session and the data read. These records show what was viewed; they are not a measure against access to the disks of the servers. We do not export Customer Personal Data from the servers, except in the encrypted backups stored with Cloudflare R2.
- **Encryption.** TLS for every connection; stored secrets, and the keys sent with transactions, encrypted with AES-256-GCM; database backups encrypted before they leave our servers (DPA, Annex B). The data of transactions is processed in plain text, because the service needs to read it.
- **Minimisation.** Quasar Cloud needs public blockchain data; the Customer controls the free fields and must not send special categories. Webhook delivery logs are kept for up to 3 months; other data while the app that sent it exists (DPA, Section 10).
- **No back doors of our own.** We have not created back doors or similar means of access to Customer Personal Data, and we do not change our processing to facilitate access by authorities. Whether a law could require such means from TUWA depends on how its service is qualified (Section 2).

5. The assessment of each flow

This document is the general part of the assessment. Apart from the standard flow profile (Section 6), it does not conclude for any particular flow. For each flow that does not match the profile, our signatory assesses how this general part applies to it before the package of standard contractual clauses is prepared: the categories of data the Customer's apps send, including what they put in free fields such as titles, descriptions and payloads, the webhook events and responses kept, the paths by

which the data is stored and accessed, our access to it in plain text from Ukraine and the measures that apply. The signatory then writes our conclusion with the reasons of that flow, including why the measures are enough for its data, the ways it is accessed and the laws that apply; that no authority has asked for data so far does not decide it. The outcome is that the flow can proceed, that it needs additional measures that the package names, or that we cannot conclude the clauses for it. Additional measures are in place before the data of the flow is transferred: the Customer confirms it when it signs, and our signatory checks it, for example on the data actually received, and records how before we sign. The conclusion and the date of its next review are part of Annex I.B of the package. The Customer makes its own assessment and signs the package only if it agrees, or declines it with the reason; before we sign, our signatory confirms that the facts have not changed. That the wallet addresses are public does not by itself make free fields or our administrative access low-risk; each flow is assessed on what it actually contains.

6. Standard flow profile

This section assesses one kind of flow in advance and gives our conclusion for it. It applies only through a standing offer that our signatory gives in the Quasar admin panel; while none is in force, every flow is assessed under Section 5. A flow matches the standard flow profile only if it meets all of these conditions, as the clauses and the confirmation of the Customer state them:

1. The data exporter is registered in the Member State of the European Union where it is established, and this flow takes place in the context of the activities of that establishment (Article 3(1) GDPR); it does not rely on Article 3(2). Annex I.C names the supervisory authority of that Member State (Clause 13(a)).
2. The data exporter is the controller of this data (Module Two).
3. The free fields of its transactions (titles, descriptions, payloads) carry only technical data.
4. Its webhook endpoints answer Quasar Cloud with a status or technical data only, and Quasar Cloud keeps only the status of these responses for its organization.
5. The data, its storage in the Netherlands, TUWA’s access from Ukraine and the measures are those of Annexes D and B of the Data Processing Addendum, with nothing added for this flow.

What the profile covers. The data: public wallet addresses and transaction hashes, the technical fields of transactions (including their call data), and free fields with technical data only, such as “Swap” or “Mint”, without names, email addresses or other personal details; the events Quasar Cloud sends to the Customer's webhook endpoints, kept for up to 3 months, of whose responses only the HTTP status is kept. The data subjects: the users of the Customer's apps whose transactions the apps sync. Frequency and scale: continuous, as the apps sync transactions, within the Customer's quota; the events are those of the life of a transaction (sent, confirmed, failed, replaced). The recipients: TUWA, and the sub-processors in Annex C of the DPA under the safeguards listed there. Where the data is stored and how it is accessed: Section 1, with the measures of Section 4. Our position as data importer for such flows: the approved version of our internal conclusion that the clauses name, a preliminary conclusion drawn from the facts it lists, which we check again as those facts change and which is not a finding for every future operation.

What takes a flow off the profile. Personal details in the free fields, the call data or the webhook responses; other kinds of data, or the data of other people, than the conditions and Annex D describe; the Customer processing the data for another controller, or the GDPR applying to it other than through its establishment; and, on our side, storage outside the Netherlands, access from elsewhere than Ukraine, new sub-processors or other measures. The Customer changes its answers in the Quasar dashboard before its apps send such data, and our signatory then assesses the flow under Section 5; a change on our side is notified under the DPA and assessed again.

Assessment. The wallet addresses and transaction hashes are public on the blockchains, but they relate to people: over time and together with the transaction data, they can make a person identifiable. The operator of TUWA reads this data in plain text to run the service, so Ukrainian authorities could seek it from TUWA under the procedures of Section 2; encryption in transit and of backups does not prevent that access, because it is the access the service itself needs. Those procedures have the conditions and the control that Section 2 describes, and their effectiveness in a particular case cannot be assumed. We have received no request so far (Section 3), which does not by itself decide the assessment. What limits the risk for a flow on the profile: the data carries no personal details beyond what its transactions show on the blockchains, no content of webhook responses is kept, and no special categories are processed; access is limited to the operator with two-factor authentication, each view in the admin panel is recorded and access is reviewed every week; and the commitments of Clause 15 apply to any request (Section 4).

Conclusion for the profile. Taking these facts into account, TUWA has no reason to believe that the laws and practices of Ukraine prevent it from fulfilling its obligations under the clauses for a flow that matches the profile. Such a flow can proceed without additional measures.

How it applies. When the Customer's answers in the Quasar dashboard meet every condition, the dashboard records the match with the conditions, the version of this document and the time, and the clauses carry this conclusion in Annex I.B. The match rests on the Customer's answers: Quasar Cloud does not check the content of the free fields. The Customer makes its own assessment and confirms, when it signs, that its flow matches the profile, what its apps send and that it reaches the same conclusion, or declines the clauses. A flow that does not meet a condition, or where a condition is in doubt, is assessed by our signatory under Section 5. A new version of this document that changes the profile or its conclusion applies to the clauses prepared after it.

7. Review

We review this assessment, including the standard flow profile, at least once a year and when the relevant law or practice changes, including the end of martial law, a new data protection law, a request from an authority, or a change in where or how we process Customer Personal Data. A new version is shown in the Quasar dashboard; a version that needs the Customer's acceptance is marked so, as described in the DPA.